# STARK STATEMENT ON HOUSE VOTE TO DEFUSE THE MEDICARE TRIGGER

Thursday, 24 July 2008

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FOR IMMEDIATE RELEASE

Thursday, July 24, 2008

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STARK STATEMENT ON HOUSE VOTE TO DEFUSE THE MEDICARE TRIGGER

WASHINGTON, D.C. – Representative Pete Stark (D-CA), Chairman of the Ways and Means Health Subcommittee, released the following remarks today after the House voted 231-184 to defuse the Medicare trigger for this year:

“I want to thank my colleagues in the House for voting to turn off the Medicare trigger.  We in Congress are the fiscal stewards of Medicare.  In general, we’ve done well by the program over its lifetime, but there’s always more to do. When we enacted the Medicare Improvements for Patients and Providers Act earlier this month, we actually met the fiscal objectives of this trigger. That bill passed with broad bipartisan support of 355-59 – a rare show of unity in this Congress.  The veto override was an even stronger 383-41.

“The Congressional Budget Office has confirmed that both the new Medicare law and the President’s bill to address the trigger would have the same effect regarding postponement of the threshold.

“Frankly, I oppose the entire concept of the trigger.  It is not sensible policy.  It was dreamed up behind closed doors by Republicans eager to pacify their conservative colleagues in 2003 when they moved forward with the Medicare prescription drug legislation. It is nothing more than a means to dismantle – not sustain – the Medicare program by ending its guaranteed funding.

“We do NOT need an arbitrary, random number to tell us that we need to work together to ensure Medicare’s fiscal health. When testifying before the Ways and Means Committee earlier this year, Medicare’s Chief Actuary said, “I’m not aware of any specific technical rationale for” the number.

“This is nothing more than a scare tactic designed by the Republicans to deliver a message to the public that Medicare’s going broke.   Medicare is no more in danger of going broke that our defense department or any other governmental function.  We have no such trigger in law for limiting defense spending – and I challenge any of my Republican colleagues to support a trigger policy for defense.

“Through the years, we have always acted – usually on a bipartisan basis -- to ensure Medicare’s future.  That’s how we should continue to manage the program.

“Putting my strong opinions on the trigger aside, this entire debate today is unnecessary.  All this rule does is override the process for the remainder of this Congress – and it does so for good reason.

“Given the fact that the newly enacted Medicare law postpones the trigger threshold, I urge my colleagues on both sides of the aisle to join me in support of this rule change.  That law was enacted with broad bipartisan support.  This rule change should as well.”

BACKGROUND: Current law establishes three main sources of financing for Medicare: payroll taxes, general revenues, and beneficiary premiums.  The Medicare Modernization Act created a new mechanism -- the “45 percent trigger” -- to allegedly measure the adequacy of Medicare’s finances. The trigger looks at the amount of Medicare spending financed by general revenues.

The trigger is set in motion if the Medicare Trustees project, in two consecutive annual Trustees Reports, that funding from general revenues will exceed 45 percent of Medicare spending within a 7-year window.  If so, a “Medicare funding warning” is issued, setting in motion various processes.  The President is required to submit legislation within 15 days of the submission of the next budget, and there are expedited procedures in the House and Senate for consideration of legislation, which may be the President’s bill or another bill. Both the 2006 and 2007 Trustees reports projected general revenues would exceed the 45% threshold within the designated timeframe; thus, 2008 is the first year that the “trigger” is pulled, setting in motion a requirement for the President to submit legislation.

In order to meet the target threshold, legislation needs to cut benefits, provider payments, shift more of the burden to beneficiaries in the form of higher cost-sharing, or rely more heavily on payroll taxes.  The President sent such a bill to Congress. It proposed raising drug benefit premiums for 1.5 million beneficiaries (4.5 percent of total beneficiaries) in 2009, growing to 3.7 million beneficiaries (8.0 percent) hit with higher costs by 2018.  According to the Office of the Actuary, more than 800,000 beneficiaries would drop out of the Administration’s drug program as a result of this proposal.

The House-passed CHAMP Act, which passed the House by a vote of 225-204, would have repealed the trigger. CHAMP’s provisions for reducing overpayments to private plans would also have extended Medicare’s solvency.

The recently enacted Medicare Improvements for Patients and Providers Act (P.L. 110-235) will also extend Medicare’s solvency and will result in a one-year delay in when Medicare financing crosses the 45 percent threshold.  In fact, according to the Congressional Budget Office, its impact on Medicare financing is the same as to the President’s bill.

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IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF WISCONSIN

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CHARLES G. ANDERSON,

Petitioner,

v.

ORDER

12-cv-578-bbc

DEBORAH McCULLOCH, Director,
Sand Ridge Secure Treatment Center,

Respondent.[1]

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Petitioner Charles G. Anderson seeks a writ of habeas corpus under 28 U.S.C. § 2254 to challenge his continued confinement at the Sand Ridge Secure Treatment Center in Mauston, Wisconsin. Anderson proceeds pro se and he has paid the five dollar filing fee. This case is pending before the court for preliminary review under Rule 4 of the Rules Governing Section 2254 Cases.

Preliminary review of the petition shows that Anderson is in custody pursuant to a civil commitment order entered under the state sexually violent persons law, Wis. Stat. ch. 980. Anderson provides scant detail about his commitment proceedings or his efforts to obtain relief in state court. He appears to challenge a judgment from the Circuit Court for Portage County, which denied his petition for discharge under Wis. Stat. § 980.09. Public records confirm that this judgment was affirmed on direct appeal, *State v. Anderson*, 2012 WI App 52, 340 Wis.2d 742, 813 N.W.2d 248 (Wis. App. March 22, 2012) (unpublished), and the Wisconsin Supreme Court has denied further review.

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[1] The petition lists Secretary Dennis Smith of the Wisconsin Department of Health and Human Services as the respondent. The court substitutes the official having custody, Sand Ridge Director Deborah McCulloch, as the proper respondent under Rule 2(a) of the Rules Governing Section 2254 Cases.

Liberally construed, Anderson contends that his continued confinement is unconstitutional because the state failed to prove that he remains a sexually violent person as defined by Wis. Stat. 980.01(7). Anderson has not alleged any facts in support of this claim. Nevertheless, it appears that Anderson has exhausted his state court remedies with respect to this issue and that he has filed his petition within the one-year limitations period on federal review. Therefore, at this early stage of the case, Anderson may proceed with this claim.

ORDER

IT IS ORDERED THAT:

1. **Service of petition**. Pursuant to an informal service agreement between the Attorney General and the court, the Attorney General is being notified to seek service on the respondent, Deborah McCulloch, in her official capacity as director of the Sand Ridge Secure Treatment Center.

2. **Answer deadline**. Within 30 days of the date of service of this order, respondent must file an answer to the petition, in compliance with Rule 5 of the Rules Governing Section 2254 Cases, showing cause, if any, why this writ should not issue.

3. **Motions to dismiss**. If the respondent contends that the petition is subject to dismissal on its face - - on grounds such as the statute of limitations, an unauthorized successive petition, lack of exhaustion or procedural default - - then respondent is authorized to file within 30 days of this order, a motion to dismiss, a supporting brief and any documents relevant to the motion. Petitioner shall have 20 days following service of any dismissal motion within which

to file and serve his responsive brief and any supporting documents. The respondent shall have 20 days following service of the response within which to file a reply.

4. **Denial of motion to dismiss**. If the court denies such a motion to dismiss in whole or in part, then it will set deadlines for the respondent to file an answer and for the parties to brief the merits.

5. **Briefing on the merits**. If respondent does not file a motion to dismiss, then the parties shall adhere to the following briefing schedule regarding the merits of petitioner's claims:

(a) Petitioner shall file a brief in support of his petition within 30 days after respondent files his answer. With respect to any claim adjudicated on the merits in state court, petitioner must show either that (1) the state court contravened a controlling opinion of the United States Supreme Court; (2) the state court applied a controlling opinion of the United States Supreme Court in an unreasonable manner; or (3) the state court's decision rested upon an unreasonable determination of the facts. 28 U.S.C. § 2254(d).

(b) Respondent shall file a brief in opposition within 30 days after petitioner files his initial brief.

(c) Petitioner shall have 20 days after respondent files his brief in which to file a reply brief.

Entered this 22nd day of August, 2012.

BY THE COURT:

/s/

STEPHEN L. CROCKER
Magistrate Judge

# PUCO Apples to Apples Natural Gas Rate Comparison Chart

## Vectren Energy Delivery of Ohio

*Updated January 24, 2007 – Next Update, January 31, 2007*

The PUCO produces the Apples to Apples charts to provide consumers with a snapshot comparison of current natural gas supplier price options and contract terms. The PUCO updates the charts on a regular basis and verifies each supplier offer to ensure accuracy. The chart below lists only the certified suppliers that are actively enrolling new customers. As with all contracts, consumers should carefully read and understand all terms and conditions before signing any forms or agreeing to enroll with a supplier for natural gas service.

The PUCO provides the tools you need to calculate your estimated cost. The self-calculation worksheet following the chart below walks you through the steps needed to manually calculate your own estimated cost. You can also visit **www.PUCO.ohio.gov** and click on the **Apples to Apples** link to access our interactive calculator and automatically calculate your estimated costs.

**Vectren Energy Delivery of Ohio's Rate**

Vectren Energy Delivery's (Vectren) current total rate is **$1.09647** per hundred cubic feet (Ccf), effective from January 1, 2007 to January 31, 2007. This includes a Gas Cost Recovery (GCR) rate of **$0.88321** per Ccf, a gross receipts tax of **$0.04307** per Ccf, and transportation costs of **$0.17019** per Ccf. Vectren's GCR rate varies each month and provides a dollar-for-dollar recovery of costs incurred by the local utility to purchase natural gas. The GCR rate allows the local utility to correct any over or under collections of natural gas costs from previous periods if the actual cost is different than the estimate. Contact information for ***Vectren Energy Delivery of Ohio: One Vectren Sq., Evansville, IN 47708, (800) 227-1376, www.Vectrenenergy.com.***

**Supplier Rate Offers**

The chart below reflects the current offers provided by suppliers that are actively soliciting customers. ***Published price offers and contract terms are subject to change without prior notice and exclude applicable state and county sales tax.*** Supplier prices are not subject to any after-the-fact adjustments like those made to the local utility's GCR rate. ***Consumers should check with suppliers to verify offers before signing a contract.***

| Supplier Name | Current Offer per Ccf | Contract Term | Total Rate per Ccf* |
|---|---|---|---|
| **Interstate Gas Supply**<br>**(877) 444-7427**<br>**www.igsenergy.com** | Fixed Rate Plan - $0.879<br>***[Thereafter, variable rate initially set at $0.999]*** | Through July 2007 | $1.01807 |
| **MxEnergy**<br>**(877) 557-4355**<br>**www.mxenergy.com** | a) Fixed Rate Plan - $1.190<br>b) Fixed Rate Plan - $0.999 | a) One-Year or Three-Year<br>b) Six-Month | a) $1.32907<br>b) $1.13807 |
| **Vectren Source**<br>**(800) 516-6740**<br>**www.vectrensource.com** | a) Fixed Rate Plan - $1.085<br>b) Monthly Variable Rate Plan - $1.0778 | a) One-Year<br>b) Monthly | a) $1.22407<br>b) $1.21687 |

* Includes transportation rate charge

**Chart Definitions**

**Ccf**: One hundred cubic feet; a unit used to measure natural gas usage.

**Contract Term**: The length or duration of the contract (i.e. monthly, yearly, multiple-year).

**County Sales Tax**: When natural gas is purchased from a supplier, the natural gas is subject to Ohio sales or use tax. Because county sales tax rates vary throughout Ohio, the county sales tax is not included in the supplier's total rate. Use the attached map to determine your county's sales tax rate.

**Current Offer**: Comprised of suppliers' current commodity options and base rates, exclusive of sales tax, the local utility transportation charge, and customer service charges. Commodity options may be a fixed, variable, or stable rate plan.

**Questions to ask Suppliers**

- Are there any deposit requirements?
- Do you charge any early termination fees? If so, how much?
- Do you charge any switching, membership or other fees?
- Are you certified by the PUCO?
- Is your rate fixed, or does it change?
- If it is a variable rate, how does it change?
- Is there a customer incentive for signing up?
- Are there any built-in price increases or decreases?
- Are there any special add-on services?
- How long is the contract for this offer?
- Does your service cover all months of the year?
- What happens when my contract expires?
- Will I receive one or two bills a month?

**Expected Gas Cost (EGC)**: A component of the GCR, the EGC is the price the local utility expects to pay for natural gas in the upcoming GCR rate period. For example, if the GCR rate is filed on a monthly basis, the local utility will calculate the EGC for the following month. Gas costs recoverable through the EGC include the cost of purchasing the gas itself as well as the cost of transporting the gas from the producing region to the local utility's service territory through the interstate pipeline system.

**Fixed Rate Plan**: A constant rate for the contracted period.

**Gas Cost Recovery (GCR) Rate**: A mechanism that provides a dollar-for-dollar recovery of costs incurred by a local utility to purchase natural gas to its system. The GCR mechanism enables the local utility to correct any over or under collections of natural gas costs in previous periods.

**GCR Transition (GCRT) Rider**: An adjustment used to reimburse or charge customers for any under or over recovery of previous year's gas cost charges. Although all customers are assessed a transportation rate charge, following 12 month's participation as a CHOICE customer, the GCR transition rider is eliminated from the customer's bill. Because the GCR transition rider only impacts the transportation charges of CHOICE customers of less than 12 month's participation, the total rate is calculated with these customers in mind.

**Gross Receipts Tax**: When natural gas is purchased from a local utility, it is not subject to Ohio sales or use tax. The local utility must pay a gross receipts excise tax which is included in the GCR rate charged for the natural gas based on the volume of gas consumed (per Ccf).

**Stable Rate Plan**: A variable rate for a fixed period of time.

**Supplier Name**: PUCO-certified suppliers that are actively enrolling new customers.

**Total Rate**: Comprised of the supplier's natural gas commodity prices, plus the transportation rate charge.

**Transportation Rate Charge**: The transportation rate charge, which can fluctuate quarterly, is comprised of a base rate, transportation program cost, migration rider, Percentage of Income Payment Plan rider, excise tax rider, uncollectible expense rider, GCR transition rider, and gross receipts excise tax.

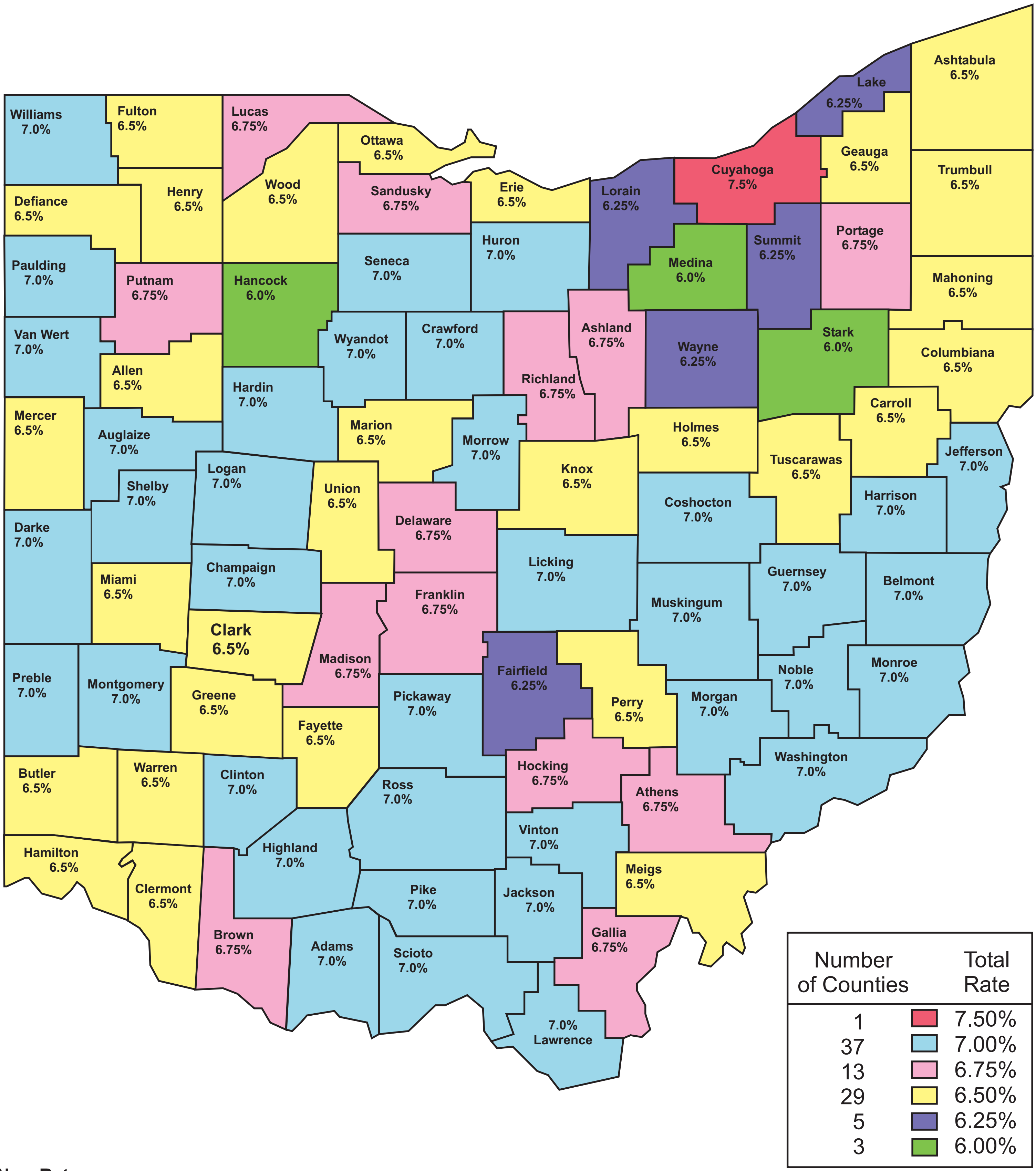
**Variable Rate Plan**: A fluctuating rate within the contracted period.

**Self-Calculation Worksheet**

This self-calculation worksheet will provide you with an estimate of your monthly natural gas costs, based on your average monthly gas usage, current supplier price, transportation and service charges, and local sales tax. You may also wish to visit www.PUCO.ohio.gov to access our interactive *Apples to Apples* calculator.

| | **Example** | **Your Calculation** |
|---|---|---|
| **Step 1: Supplier Offer**<br>Insert the supplier's current offer. | **Supplier Offer: $1.00/Ccf** | **Supplier Offer: $_______/Ccf** |
| **Step 2: Figure your Average Monthly Usage**<br>Divide your annual gas usage in Ccf (provided on your monthly bill) by 12. | (annual gas usage) **879**<br>÷ 12<br>**Average Monthly Usage: 73.3 Ccf** | (annual gas usage) _________<br>÷ 12<br>**Average Monthly Usage: _______Ccf** |
| **Step 3: Supplier Charge**<br>Multiply the supplier offer by your monthly gas usage. | (supplier offer) **$1.00**<br>(average monthly usage) x 73.3<br>**Supplier Charge: $73.30** | (supplier offer) $_________<br>(average monthly usage) x_________<br>**Supplier Charge: $_________** |
| **Step 4: Tax on Supplier Charge**<br>Multiply the supplier charge by your county sales tax rate (to obtain this rate, use the map on the next page). | (supplier charge) **$73.30**<br>(county sales tax rate) x 0.07<br>**Tax on Supplier Charge: $5.13** | (supplier charge) $_________<br>(county sales tax rate) x 0.______<br>**Tax on Supplier Charge: $_________** |
| **Step 5: Delivery Rate**<br>Insert your delivery service rate. | **Select $0.13907/Ccf** if you have been a CHOICE customer for **less than 12 mos.**<br>*or*<br>**Select $0.17019/Ccf** if you have been a CHOICE customer for **more than 12 mos.** | **$___________/Ccf** |
| **Step 6: Delivery Charge**<br>Multiply the delivery rate by your average monthly usage. | (delivery rate) **$0.13907**<br>(average monthly usage) x 73.3<br>**Delivery Charge: $10.19** | (delivery rate) $__________<br>(average monthly usage) x_________<br>**Delivery Charge: $_________** |
| **Step 7: Supplier Estimated Monthly Cost**<br>Add the supplier charge, the tax on supplier charge, the delivery charge, and a monthly customer charge of $7.00. | (supplier charge) **$73.30**<br>(tax on supplier charge) **5.13**<br>(delivery charge) **10.19**<br>(monthly customer charge) **+ 7.00**<br>**Estimated Monthly Cost: $95.62** | (supplier charge) $_________<br>(tax on supplier charge) _________<br>(delivery charge) _________<br>(monthly customer charge) + 7.00<br>**Estimated Monthly Cost: $_________** |
| **Step 8: Vectren Energy Delivery's Estimated Monthly Cost**<br>Multiply Vectren Energy Delivery's current total rate by your average monthly usage, then add the monthly customer charge. | (current total rate) **$1.09647**<br>(average monthly usage) x 73.3<br>(subtotal) **$80.37**<br>(monthly customer charge) + 7.00<br>**Estimated Monthly Cost: $87.37** | (current total rate) **$1.09647**<br>(average monthly usage) x_________<br>(subtotal) $_________<br>(monthly customer charge) + 7.00<br>**Estimated Monthly Cost: $_________** |
| **Step 9: Compare**<br>Compare the supplier's estimated monthly cost to that of Vectren Energy Delivery. | **Supplier: $95.62/month**<br>**Vectren Energy Delivery: $87.37/month** | **Supplier: $_____/month**<br>**Vectren Energy Delivery: $_____/month** |

# Total State and Local Sales Tax Rates, By County
# Effective October 2006




**New Rates**:
Clark County 6.50% (previously 7.00%)

**Ohio Department of Taxation**
**September 7, 2006**

Ohio Department of TAXATION

*Business Taxpayer Services Division*
*4485 Northland Ridge Blvd*
*Columbus, Ohio 43229*
*(888) 405-4039 Fax (614) 387-1851*
*http://tax.ohio.gov*

## STATE AND PERMISSIVE SALES TAX RATES BY COUNTY, OCTOBER 2006

| County | County Tax Rate | Transit Tax Rate | Total State & Local Rate | County | County Tax Rate | Transit Tax Rate | Total State & Local Rate |
|---|---|---|---|---|---|---|---|
| Adams | 1.50% | -- | 7.00% | Licking | 1.50% | -- | 7.00% |
| Allen | 1.00 | -- | 6.50 | Logan | 1.50 | -- | 7.00 |
| Ashland | 1.25 | -- | 6.75 | Lorain | 0.75 | -- | 6.25 |
| Ashtabula | 1.00 | -- | 6.50 | Lucas | 1.25 | -- | 6.75 |
| Athens | 1.25 | -- | 6.75 | Madison | 1.25 | -- | 6.75 |
| Auglaize | 1.50 | -- | 7.00 | Mahoning | 1.00 | -- | 6.50 |
| Belmont | 1.50 | -- | 7.00 | Marion | 1.00 | -- | 6.50 |
| Brown | 1.25 | -- | 6.75 | Medina | 0.50 | -- | 6.00 |
| Butler | 1.00 | -- | 6.50 | Meigs | 1.00 | -- | 6.50 |
| Carroll | 1.00 | -- | 6.50 | Mercer | 1.00 | -- | 6.50 |
| Champaign | 1.50 | -- | 7.00 | Miami | 1.00 | -- | 6.50 |
| Clark | 1.00 | -- | 6.50 | Monroe | 1.50 | -- | 7.00 |
| Clermont | 1.00 | -- | 6.50 | Montgomery | 1.00 | 0.50% | 7.00 |
| Clinton | 1.50 | -- | 7.00 | Morgan | 1.50 | -- | 7.00 |
| Columbiana | 1.00 | -- | 6.50 | Morrow | 1.50 | -- | 7.00 |
| Coshocton | 1.50 | -- | 7.00 | Muskingum | 1.50 | -- | 7.00 |
| Crawford | 1.50 | -- | 7.00 | Noble | 1.50 | -- | 7.00 |
| Cuyahoga | 1.00 | 1.00% | 7.50 | Ottawa | 1.00 | -- | 6.50 |
| Darke | 1.50 | -- | 7.00 | Paulding | 1.50 | -- | 7.00 |
| Defiance | 1.00 | -- | 6.50 | Perry | 1.00 | -- | 6.50 |
| Delaware | 1.25 | -- | 6.75 | Pickaway | 1.50 | -- | 7.00 |
| Erie | 1.00 | -- | 6.50 | Pike | 1.50 | -- | 7.00 |
| Fairfield | 0.75 | -- | 6.25 | Portage | 1.00 | 0.25 | 6.75 |
| Fayette | 1.00 | -- | 6.50 | Preble | 1.50 | -- | 7.00 |
| Franklin | 1.00 | 0.25 | 6.75 | Putnam | 1.25 | -- | 6.75 |
| Fulton | 1.00 | -- | 6.50 | Richland | 1.25 | -- | 6.75 |
| Gallia | 1.25 | -- | 6.75 | Ross | 1.50 | -- | 7.00 |
| Geauga | 1.00 | -- | 6.50 | Sandusky | 1.25 | -- | 6.75 |
| Greene | 1.00 | -- | 6.50 | Scioto | 1.50 | -- | 7.00 |
| Guernsey | 1.50 | -- | 7.00 | Seneca | 1.50 | -- | 7.00 |
| Hamilton | 1.00 | -- | 6.50 | Shelby | 1.50 | -- | 7.00 |
| Hancock | 0.50 | -- | 6.00 | Stark | 0.25 | 0.25 | 6.00 |
| Hardin | 1.50 | -- | 7.00 | Summit | 0.50 | 0.25 | 6.25 |
| Harrison | 1.50 | -- | 7.00 | Trumbull | 1.00 | -- | 6.50 |
| Henry | 1.00 | -- | 6.50 | Tuscarawas | 1.00 | -- | 6.50 |
| Highland | 1.50 | -- | 7.00 | Union | 1.00 | -- | 6.50 |
| Hocking | 1.25 | -- | 6.75 | Van Wert | 1.50 | -- | 7.00 |
| Holmes | 1.00 | -- | 6.50 | Vinton | 1.50 | -- | 7.00 |
| Huron | 1.50 | -- | 7.00 | Warren | 1.00 | -- | 6.50 |
| Jackson | 1.50 | -- | 7.00 | Washington | 1.50 | -- | 7.00 |
| Jefferson | 1.50 | -- | 7.00 | Wayne | 0.75 | -- | 6.25 |
| Knox | 1.00 | -- | 6.50 | Williams | 1.50 | -- | 7.00 |
| Lake | 0.50 | 0.25 | 6.25 | Wood | 1.00 | -- | 6.50 |
| Lawrence | 1.50 | -- | 7.00 | Wyandot | 1.50 | -- | 7.00 |

**NOTE: State rate is now 5.5%.**

**September 7, 2006**